



POLICE DEPARTMENT

December 4, 2025

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In the Matter of the Charges and Specifications :

- against - :

Police Officer Ryan Zelman :

Tax Registry No. 965911 :

45th Precinct :

Case No.

C-031773

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For CCRB- APU: Ashley Baxter, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Craig Hayes, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Ryan Zelman, on or about August 22, 2021, at approximately 2134 hours, while assigned to the 45th Precinct and on duty, in the vicinity of [REDACTED] [REDACTED] abused his authority as a member of the New York City Police Department, in that he threatened M.F.¹ by stating in sum and substance, “You will get tased, you will fucking get tased,” without police necessity.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED
CONDUCT

2. Police Officer Ryan Zelman, on or about August 22, 2021, at approximately 2134 hours, while assigned to the 45th Precinct and on duty, in the vicinity of [REDACTED] [REDACTED] engaged in conduct prejudicial to good order, efficiency, or discipline of the Department in that he was, discourteous, to M.F. by stating in sum and substance, “You will get tased. You will fucking get tased,” without police necessity.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED
CONDUCT

3. Police Officer Ryan Zelman, on or about August 22, 2021, at approximately 2134 hours, while assigned to the 45th Precinct and on duty, in the vicinity of [REDACTED] [REDACTED] wrongfully used force, in that he punched M.F. without police necessity.

P.G. 221-02, Page 2, Paragraphs 11, 12

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on November 5, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. CCRB did not call any witnesses and relied on body-worn camera video evidence. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner’s review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty of the charged misconduct.

¹ M.F.’s identity is known to the Tribunal.

ANALYSIS

Introduction

This case involves a police response to a 911 call for assistance dealing with an individual (“M.F.”) with a diagnosed psychiatric condition, who was not taking his medication as prescribed. CCRB presented no witness testimony but relied upon: (1) body-worn camera recordings from Respondent and his partner, Police Officer Jonathan Martinez; (2) a recording of the radio call dispatching Respondent to the location of the request for assistance; and (3) a transcript of the radio call. At issue in this case is whether: (1) a verbal threat to M.F. to use a Taser was an abuse of authority; (2) the use of the word “f-cking” as a part of the verbal threat to M.F. to use a Taser was discourteous; and (3) the punches Respondent used to subdue M.F. so that he could be handcuffed were without police necessity.

Respondent

Respondent testified that he is currently assigned to the Quality of Life Team within the 45th Precinct. He explained that in this role he has handled “100 or more” Emotionally Disturbed Person (“EDP”) jobs and emphasized that “safety is always paramount,” along with ensuring that individuals in crisis receive the help they need. Respondent testified that on August 22, 2021, he and his partner responded to [REDACTED] after a 911 call from a mother seeking help for her son, M.F. He recalled that upon their arrival, M.F.’s mother explained—calmly but with concern—that M.F. was off his medications and “acting irate;” and she then let officers into the home and led them upstairs to M.F.’s bedroom (T. 26-29).

Respondent testified that when they approached the bedroom door, it was closed; M.F.’s mother then knocked, which apparently agitated M.F., causing him to yell and curse through the closed door. In response, Respondent assumed the role of contact officer and announced the

police presence. He testified that M.F. eventually opened the door but seemed to be disturbed and confused. According to Respondent, M.F. appeared incoherent, and “wasn’t making sense.” Respondent attempted to explain why they were there, but M.F. seemed to be “kind of in his own world.” During the verbal exchange, Respondent entered M.F.’s bedroom first, followed by Police Officer Martinez, which appeared to further heighten M.F.’s agitation (T. 29-31, 45).

Respondent recalled that after he entered the room, M.F. objected to more than one police officer being inside. He testified that M.F. then approached Police Officer Martinez, attempted to shove him, and grabbed at the door to his left to close it. Respondent explained that this heightened his concern that he might end up locked in the room alone with M.F. Police Officer Martinez then pushed M.F.’s hands away while Respondent attempted to gain control of M.F.’s right wrist to place him in handcuffs. Respondent recounted that M.F. immediately pulled away and “squared up and essentially got into a fighting stance” (T. 32-34).

Respondent testified that, at that point, the two remaining officers entered M.F.’s room. With growing concern that the situation might escalate and become more violent, Respondent explained that he drew his Taser and warned M.F. that he would be tased. As officers continued struggling with M.F., Respondent issued another warning, this time intentionally using profanity to emphasize the severity of the situation, hoping that the use of profanity might get M.F.’s attention. The second warning also proved ineffective; Respondent did not deploy the Taser, however, because the other officers were physically engaged with M.F. and “there was no safe way” to do so (T. 34-36).

Respondent described the incident in the bedroom as chaotic. He remembered all the officers yelling at M.F. to give up his hands. He testified that M.F. was on his stomach, on his bed, struggling, with his left arm “free . . . swinging and flailing,” while his right arm was tucked

beneath his body. Despite repeated verbal commands and other attempts to gain control, M.F. refused to cease his resistance (T. 37-38).

Respondent testified that he then struck M.F. twice in the face, with a closed fist, around his cheek. M.F. reacted by saying, "oh, you punched me in the face," after which the police officers were able to handcuff him and bring him to his feet. Respondent testified that M.F. lunged at him, but officers quickly regained control; he later learned that M.F.'s glasses had been broken (T. 37-41).

On cross-examination, Respondent acknowledged being familiar with the Patrol Guide section governing the safeguarding of mentally ill or emotionally disturbed persons who do not seek assistance on their own. He further testified that at no point during his interaction did M.F. attempt to run away from the police officers, and that the door remained open while they spoke. He also acknowledged that M.F.'s actions did not constitute an immediate threat of serious physical injury (T. 42-48).

Respondent also acknowledged that M.F. invited him into the bedroom, suggesting that M.F. was not attempting to flee. He recalled that once inside M.F.'s bedroom, M.F. asked that "only one officer at a time be in his room," and that M.F. used his hand to touch Police Officer Martinez in what Respondent believed was an attempt to usher Martinez out of the bedroom. He conceded that M.F. was not carrying a weapon, and that three to four officers were in the room attempting to restrain M.F. on the bed, while he was on his stomach (T. 52-54).

While officers were attempting to restrain M.F., Respondent admitted to punching him twice with a closed fist, describing it as "a minimum amount of force that I needed to gain compliance" (T. 38, 55).

Body-Worn Camera Recordings

The following is a summary of the relevant portions of Respondent's body-worn camera recording, in evidence as CCRB's Exhibit 1.

- 1:00-1:58** Respondent arrives at M.F.'s home, where other responding officers are already on scene. He stops at the front door alongside the other officers and speaks briefly with M.F.'s mother before she leads them up the steps to the second floor. They walk through the kitchen, where she mentions her concern about M.F.'s health to Respondent, then leads them to a bedroom off the kitchen to the right.
- 1:59-2:32** M.F.'s mother knocks on the door while police officers remain in the kitchen and says, "[REDACTED] M.F. twice yells from behind the closed door, "Get the f**k away from me!" Respondent calls out, "[REDACTED] M.F.'s mother says, "[REDACTED] don't act like that. It's okay." Respondent moves closer to the door, knocks, and says, "Hey [REDACTED] It's the Police Department." M.F. asks, "For what?" Respondent replies, "We just gotta talk to you, bud. Well, we got a call, so we have to come and check up on you." The remaining police officers stand a few feet away in the kitchen. M.F. continues expressing frustration through the closed door as his mother urges him to calm down.
- 2:33-3:50** Respondent asks M.F. to open the door, and he complies. Upon seeing Respondent, M.F. says, "Oh! I don't care. What are you guys doing here?" Respondent explains why police are present, and M.F. replies, "I'm not amused at all. I [am] watching a movie." Respondent replies, "We don't think it's amusing either, [REDACTED] but we gotta talk to you." M.F. disagrees, threatens to sue the police officers for harassment, and asks them to leave so he can continue watching his movie. Respondent tells him, "We can't do that, [REDACTED] and further explains that the police officers need to speak with him. M.F. refuses and attempts to close the door as his mother pleads with him to calm down. This exchange—M.F. refusing to speak, his mother urging him to calm down, and Respondent explaining why police officers are there—continues for several seconds before Respondent asks, "Do you want to step out, [REDACTED] M.F. replies, "No, I don't; I'm sitting here." Respondent then asks, "Ok, do you want to sit on the chair?" M.F. replies, "No. I was laying down before you guys came here."
- 3:51-4:36** After a brief exchange, Respondent informs M.F. that officers were told he was not taking his medication. M.F. insists the police officers are there to bother him and says, "That's none of your business," repeatedly telling Respondent to "get the f**k out" as he puts on his shoes. Respondent explains that they are there to talk to him. M.F. then gets on the bed and says, "I'm watching a movie. If you want to join me. Sit down and join me." Respondent moves farther into the bedroom, PO Martinez and another officer follow. M.F. stands and tells the other

police officers, "One person at a time," demanding that they close the door. PO Martinez replies, "We're not doing that," and M.F. reaches in his direction. PO Martinez blocks him with his left hand and says, "Don't touch me," as Respondent grabs M.F. by the right arm.

4:37-6:49 PO Martinez takes M.F. down onto the bed as Respondent pulls out his Taser and threatens to tase M.F. Respondent repeats, "You're gonna get f**king tased," while M.F. resists commands to put his hands behind his back. M.F.'s mother is heard saying, "Don't grab him like that!" The police officers continue struggling with M.F., ordering him to put his hands behind his back. M.F. accuses Respondent of punching him, to which Respondent replies, "Yes, I did." M.F. continues resisting. Police officers eventually handcuff him and bring him to his feet. Several police officers are in the room, while another stands at the door. M.F. again attempts to resist, and police officers take him down onto the bed a second time until he calms down. Police officers then walk him out of the bedroom.

The following is a summary of the relevant portions of Police Officer Martinez's Body-Worn Camera recording, entered in evidence as CCRB's Exhibit 2.

- 01:00-1:59** Officers arrive on scene and speak with M.F.'s mother at the front door. After a few seconds, she leads officers upstairs to the second-floor apartment, guiding them through the kitchen and to a bedroom door just outside the kitchen on the right-hand side.
- 02:00-2:30** M.F.'s mother knocks on the bedroom door as officers gather and wait for M.F. to respond. She calls "[REDACTED]" twice, and through the closed door he says, "get the f**k away from me." Respondent then calls, "[REDACTED]" His mother follows with, "[REDACTED]" don't act like that. It's okay." Respondent moves closer to the door, knocks, and says, "Hey [REDACTED]" It's the Police Department." M.F. makes an inaudible statement from inside, and Respondent replies, "We just gotta talk to you bud." M.F. responds, "about what," and the officer replies, "Well we got a call so we gotta come check up on you."
- 02:31-2:57** M.F. makes a few more inaudible statements from behind the door as his mother repeats, "[REDACTED]" just calm down," and Respondent asks, "[REDACTED]" you mind opening the door?" M.F. opens the door and says, "Oh! I don't care! What are you guys doing here?" Respondent replies, "We're here to talk to you. Do you mind stepping out?" M.F. replies, "I'm not amused at all," and reiterates his frustration with their presence and the fact that they are disrupting his movie. Officers reaffirm they are there to talk, and M.F. threatens to sue for harassment.
- 2:58-3:10** M.F. tells officers, "Please leave. Exit!" Respondent explains that they need to talk to him. M.F. repeatedly asks, "About what?" and continues expressing frustration. Officers move closer to the bedroom threshold as they ask M.F. to

either step out or leave the door open. M.F.'s mother repeatedly asks him to calm down, while M.F. states, "I'm not having a conversation."

- 3:11–4:15** The police officers and M.F.'s mother continue trying to reason with him as M.F. resists their attempts. PO Martinez, now standing directly behind Respondent in the doorway, addresses M.F. in an inaudible statement. Respondent tells the other police officers to make some room and again asks M.F. if he wants to step out. M.F. responds, "No, I don't. I'm sitting here," and Respondent asks if he will sit on the chair. M.F. replies, "I'm not sitting on the chair. I was laying down until you guys came here." Respondent explains, "We're here because we're hearing that you're not taking your medication." M.F. replies, "That's not funny. That's not a joke." He continues accusing officers of being there to bother him and tells Respondent, "That's none of your business," while continuing to criticize them.
- 4:16–4:36** Police officers and M.F. continue in a verbal exchange as Respondent steps farther into the bedroom, while M.F. puts his shoes on. M.F. then gets on the bed and says, "I'm watching a movie. If you want to join me, sit down, and join me." PO Martinez moves farther into the room as Respondent attempts to reason with him. As more officers approach, M.F. tells them, "One person at a time," and PO Martinez replies, "We're not doing that." M.F. steps toward PO Martinez and reaches in his direction. PO Martinez blocks him with his left hand and says, "Don't touch me."
- 4:37–5:45** Respondent, now standing behind M.F., grabs M.F.'s right arm, and a struggle ensues as PO Martinez joins in to apprehend him, causing M.F. to land on the bed. Respondent yells, "You're going to get tased! You're going to get f***ing tased!" The police officers order M.F. to put his hands behind his back as they struggle with him for some time. M.F. makes several inaudible statements and states, "You just punched me," to which Respondent replies, "Yes. I did." M.F. continues to struggle and threatens to sue. The officers eventually place M.F. in handcuffs and bring him to his feet. After another brief exchange, M.F. attempts to resume his resistance, but he is quickly subdued and escorted out of the bedroom.

I credit Respondent's testimony as forthright, clear and supported by the independent evidence in the case. I find that his ready admission to using force, and his reasons for doing so, imbue his testimony with the ring of truth.

Specification 1: Abuse of Authority- Threat of Taser

I find that CCRB has failed to meet their burden of proof that Respondent abused his authority by threatening M.F. by stating, in sum and substance, “You will get tased, you will fucking get tased,” without police necessity.

The credible evidence in this case establishes that M.F. was an unmedicated person in need of psychiatric intervention and at the moment that Respondent was called to M.F.’s home, he was not receptive to Respondent’s efforts to assist him. Nevertheless, Respondent reasonably relied upon M.F.’s mother’s call for assistance as a rationale to continue his efforts despite M.F.’s rebuff.

The body-worn camera evidence demonstrates persuasively that Respondent and the other police officers attempted to calm M.F., to the best of their abilities. Respondent attempted to engage M.F. verbally to persuade him to accept their help in transporting him to a hospital but was unable to make headway with him because M.F. objected to Police Officer Martinez entering his bedroom. M.F. went so far as to attempt to physically remove Officer Martinez from the bedroom.

Under no circumstances would, or should, a Member of Service acquiesce in an effort to isolate a fellow officer in a potentially dangerous situation. The fact that M.F. was unmedicated, standing alone, is a sufficient basis for police officers to presume that he was likely to behave in an unpredictable manner. While CCRB argued that M.F. was not violent and did not possess a weapon, it would be naïve for a police officer to assume that because M.F. had not committed any violent acts up until that time, that he was incapable of doing so. Moreover, Respondent entered a room in a residence with which he had no prior familiarity; it would be reckless to assume that there were no objects in M.F.’s room which could be used as dangerous instruments.

Under these circumstances, it was reasonable for Respondent to make every effort to secure M.F.'s cooperation to seek medical intervention; failing that, it was Respondent's obligation to gain control of M.F.'s person so that he could be taken to a medical facility safely, even as he objected to the intervention.

Once M.F. manifested his intention to physically repel police officers from entering his room, it was reasonable for Respondent and his fellow officers to immobilize M.F., using the minimum degree of force necessary to overcome his resistance. I find that once the police officers had immobilized M.F. on his bed, and he refused their commands to surrender his hands, it was reasonable for Respondent to escalate to a threat of non-lethal force (*i.e.*, a Taser) to try to overcome M.F.'s resistance.

Based upon the foregoing, I find Respondent Not Guilty of Specification 1.

Specification 2: Discourtesy

I find that CCRB has failed to meet their burden of proof that Respondent engaged in conduct prejudicial to good order, efficiency, or discipline of the Department in that he was discourteous to M.F. by stating, in sum and substance, "You will get tased, you will fucking get tased," without police necessity.

This Tribunal has consistently held that members of service owe a duty of professionalism to the public they serve and that profanity should not be a part of any police officer's normal lexicon. The exception to this rule is found in tense physical confrontations, where the use of profanity by a police officer, attempting to gain control of a resisting suspect, may communicate in a vivid, unambiguous manner that continued resistance will likely result in an escalation of force (*See Disciplinary Case No. 2022-25079* [June 24, 2024]; *Disciplinary Case No. 2015-14617* [Dec. 19, 2016]; *contra Disciplinary Case No. 2023-29327* [Aug. 7,

2024)). I find that those circumstances were present in this case. Accordingly, I find Respondent not Guilty of Specification 2.

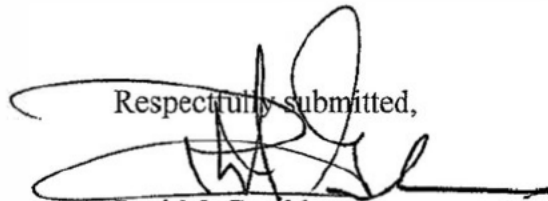
Specification 3: Force

I find that CCRB has failed to meet their burden of proof that Respondent wrongfully used force, in that he punched M.F. without police necessity.

As discussed above in the analysis of Specification 1, Respondent was trying to gain control of an actively resisting person in need of psychiatric evaluation. I find that after M.F. refused to permit himself to be handcuffed, even after being threatened with the use of a Taser, it was reasonable for Respondent to escalate the use of force to two punches to M.F.'s face to overcome his resistance (*See Disciplinary Case No. 2016-15581 [June 15, 2018]*).

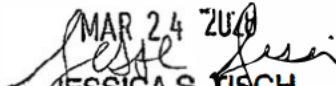
Accordingly, I find him Not Guilty of Specification 3.

Respectfully submitted,



Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

MAR 24 2020

JESSICA S. TISCH
POLICE COMMISSIONER